

M.K. Pathak, Executive Engineer v. The Electricity Ombudsman & Ors.

Allahabad High Court · Division Bench · 10 October 2018 · WRIT - C No. 16801 of 2016 · **Writ petition dismissed**

HEADNOTE

Clause 7.10 of the U.P. Electricity Supply Code, 2005 (read with Section 42(5)-(7) of the Electricity Act, 2003) entitles only the consumer — not the Electricity Distribution Licensee — to file a complaint before the Consumer Grievance Redressal Forum and, if unsatisfied, a representation before the Ombudsman. A licensee (or its officers) has no authority in law to approach the Ombudsman against an order of the Forum; the Ombudsman commits no error in dismissing such a representation/appeal by the licensee, even on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Only the consumer, not the Distribution Licensee, may approach the Forum or the Ombudsman

QUESTION

Can the Electricity Distribution Licensee (or its officer) file a representation/appeal before the Electricity Ombudsman against an order of the Consumer Grievance Redressal Forum?

HOLDING

No. Clause 7.10 of the Code and Section 42(5)-(7) of the Act, on a plain reading, entitle only the consumer to file a complaint before the Forum and, if aggrieved by non-redressal, a representation before the Ombudsman; this right is not given to the Electricity Distribution Licensee. The licensee/its officers therefore have no authority in law to approach the Ombudsman once the Forum has decided the consumer's complaint, and the Ombudsman commits no error of law in dismissing such a representation, even on its merits. ¶ [unnumbered order](#)

LIMITING FACTS

The Forum allowed the consumer's complaint; the Executive Engineer (licensee's officer) appealed to the Ombudsman, who dismissed the appeal; the licensee then challenged both orders by writ.

PRINCIPLE TAGS

ombudsman-remedy-consumer-only Confirms, on Clause 7.10 of the Supply Code and Section 42(5)-(7), that only the consumer (not the licensee) may approach the CGRF/Ombudsman — an independent DB ruling reaching the same conclusion later confirmed by the Full Bench in Kisan Cold Storage (SCJ-043) construing the parallel UPERC Regulations, 2007 provision. ¶ [unnumbered order](#)